

26STCV05553 26STCV05553

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C08%2F11%2F2026

Source SHA-256: c814e5d6bd689ff2a23e370b19c1ca08bb10326729cff7aec5d1c175a4abba3a

Case Number: 26STCV05553 Hearing Date: August 11, 2026 Dept: 224

John Taylor Feltner v. California Automobile Insurance Company

TENTATIVE RULING

Defendant EnviroLegal, LLC's special motion to strike is DENIED.

Defendant's demurrer is OVERRULED as to the third and fourth causes of action, and SUSTAINED WITH LEAVE TO AMEND as to the fifth cause of action.

Plaintiffs shall file and serve a Second Amended Complaint, if any, within 20 days of notice of this ruling.

The Case Management Conference is Continued to December 11, 2026 at 8:30 a.m.

ANALYSIS

Introduction

On February 19, 2026, Plaintiffs John Taylor Feltner and Eliza Brooks Hooper filed the Complaint in this action, arising out of the handling of a first-party homeowners insurance claim following the January 2025 Eaton Fire.

On March 23, 2026, Plaintiffs filed the First Amended Complaint.

On April 17, 2026, Defendant EnviroLegal, LLC filed the instant Special Motion to Strike, and the instant Demurrer to the First Amended Complaint.

On July 1, 2026, Plaintiffs filed an opposition to the Demurrer.

On July 29, 2026, Plaintiffs filed an opposition to the Special Motion to Strike.

On August 4, 2026, Defendant filed a reply.

Evidentiary Objections

EnviroLegal submits evidentiary objections to the Declaration of Terrence J. Coleman.

The evidentiary objections are OVERRULED.

Special Motion to Strike

Defendant EnviroLegal, LLC moves under Code of Civil Procedure section 425.16 to strike the third through fifth causes of action in the First Amended Complaint: negligent misrepresentation, intentional interference with contract, and civil conspiracy.

Legal Standard

Code of Civil Procedure section 425.16 provides in pertinent part as follows:

“(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”

(Code Civ. Proc. 425.16(b)(1).) A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., “lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc. 425.16(a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (*Baral v. Schnitt* (2016) 1 Cal.5th 375, 385-390, disapproving *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90 and its progeny).

In assessing a defendant's section 425.16 special motion to strike, the court must engage in a two-step process. (*Shekhter v. Financial Indem. Co.* (2001) 89 Cal.App.4th 141, 150.) First, the court must decide whether the defendant has met the threshold burden of showing that the plaintiff's cause of action arises from the defendant's constitutional rights of free speech or petition for redress of grievances. (*Id.*) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

The four categories, generally speaking, include: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16(e).) Speech or conduct that falls under categories (1) and (2) does not have to be connected to a public issue, while speech and conduct falling under categories (3) and (4) must be in connection with a public issue. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1117 (differentiating CCP 425.16, subdivision (e), clauses (1) and (2) from same section and subdivision, clauses (3) and (4)); *Commonwealth Energy Corp. v. Investor Data Exchange, Inc.* (2003) 110 Cal.App.4th 26, 32 (citing *Briggs*)).

If the defendant meets the initial burden, the burden then shifts to the plaintiff to establish a probability that the plaintiff will prevail on the claim. (Shekhter supra 89 Cal.App.4th at 151.) To meet this burden, the plaintiff "must demonstrate that the complaint is both legally sufficient and supported by a prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (Navellier v. Sletten (2002) 29 Cal.4th 82, 89; internal quotations omitted.)

Statutory Exemption Under Section 425.17

The Court first addresses the threshold matter of whether the Section 425.17(c) Commercial-Speech Exemption applies.

Where a party invokes the commercial speech exemption of Code of Civil Procedure section 425.17(c), that exemption presents a threshold question the court determines before reaching the two-step section 425.16 analysis. (Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316.)

Section 425.17(c) provides that section 425.16 does not apply to any cause of action brought against a person primarily engaged in the business of selling or leasing goods or services, including but not limited to insurance, arising from any statement or conduct by that person if both of the following conditions exist: the statement or conduct consists of representations of fact about that person's or a business competitor's business operations, goods, or services, made for the purpose of obtaining approval for, promoting, or securing sales or leases of, or commercial transactions in, the person's goods or services, or made in the course of delivering the person's goods or services; and the intended audience is an actual or potential buyer or customer, or a person likely to repeat the statement to, or otherwise influence, an actual or potential buyer or customer. (Code Civ. Proc. § 425.17(c).)

The California Supreme Court in *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12 established the four-part test governing the exemption. The exemption applies when (1) the cause of action is against a person primarily engaged in the business of selling or leasing goods or services; (2) the cause of action arises from a statement or conduct consisting of representations of fact about that person's or a business competitor's business operations, goods, or services; (3) the statement or conduct was made for the purpose of promoting or securing sales or commercial transactions in the person's goods or services, or was made in the course of delivering those goods or services; and (4) the intended audience consists of actual or potential buyers or customers, or persons likely to influence such buyers or customers. (Id. at 30.) The exemption "is a statutory exception to section 425.16 and should be narrowly construed," and the burden of establishing all four elements falls on the party seeking the benefit of the exemption, i.e., the plaintiff. (Id. at 22, 26.)

Plaintiffs have established elements one, three, and four. Professional and consulting services qualify as "services" under the statute. (*JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984 [exemption applied to alternative dispute resolution provider where statements were made for the purpose of promoting and securing sales or commercial transactions in defendants' ADR services and the intended audience was a party who actually engaged those services].) EnviroLegal's own evidence establishes that it sells environmental and industrial hygiene consulting services for a fee, that it billed Mercury an hourly rate for the desk review at issue, and that the engagement was undertaken in the ordinary course of EnviroLegal's consulting work. (Kovar Decl. ¶¶ 3, 13, 16-17, 23, Exh. D.) The report was itself the service delivered, satisfying the "in the course of delivering the person's goods or services" prong. And Mercury, EnviroLegal's actual paying customer, was the intended audience. (Kovar Decl. ¶¶ 4, 14-17.)

However, the claim fails on the second element. *Simpson Strong-Tie* identifies an "about" requirement: the representations giving rise to the cause of action must be about the speaker's own or a competitor's business operations, goods, or services, and not about third parties. (49 Cal.4th at 30.) In *Simpson Strong-Tie*, an attorney's advertisement implying that a manufacturer's screws were defective did not qualify because even an implication that Simpson's screws are defective "is not about Gore's or a competitor's business operations, goods, or services. . . . It is, rather, a statement about Simpson – or, more precisely, Simpson's products." (Id.) The Court identified the resulting mismatch: "to the extent that Gore's advertisement 'consists of' representations about his services, Simpson's action does not 'arise from' it; to the extent that Simpson's action 'arises from' a representation by Gore, the representation was not 'about' Gore's or a competitor's services or business operations." (Ibid.) The purpose of the exemption is correspondingly narrow. "A defendant who makes statements about a business competitor's goods or services to advance the defendant's business cannot use the anti-SLAPP statute against causes of action arising from those statements." (*Xu v. Huang* (2021) 73 Cal.App.5th 802.)

The First Amended Complaint identifies the actionable falsehoods at paragraph 38. It alleges EnviroLegal falsely stated there was "no reliable

evidence of wildfire-related smoke residue (soot, char, ash) at levels consistent with wildfire impact"; that "formaldehyde and metals detected are common background contaminants and may not be attributable to the Eaton wildfire"; that heavy metals "can occur normally in homes"; and that cited studies established lead was "widespread in soils in Los Angeles County parks." (FAC ¶ 38(a), (b), (e), (f).) These are representations about the physical condition of Plaintiffs' Property and about the science of wildfire contaminant attribution. They are statements about a third party's property and about scientific methodology generally. They are not representations about EnviroLegal's own business operations, goods, or services, nor about those of a business competitor.

Plaintiffs' opposition does not address this element. Plaintiffs argue instead that Mercury is an insurance company engaged in the business of selling insurance and delivering benefits in California, and that the statute's express reference to insurance therefore brings this action within the exemption. That argument misidentifies the relevant party. The statutory reference to insurance appears in the clause describing the person against whom the cause of action is brought, which here is EnviroLegal. Mercury's line of business is not the operative inquiry on a motion directed solely at EnviroLegal's conduct.

The section 425.17(c) exemption does not apply. The Court proceeds to the two-step analysis under section 425.16.

First Prong

Defendant first argues that Plaintiffs' claims arise from protected activity under section 425.16.

"To prevail on an anti-SLAPP motion, the movant must first make 'a threshold showing the challenged cause of action' arises from an act in furtherance of the right of petition or free speech in connection with a public issue." (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192.) "A claim arises from protected activity when that activity underlies or forms the basis for the claim." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

Whether the anti-SLAPP statute applies is determined by the "principal thrust" or "gravamen" of the claim and therefore the statute cannot be invoked for allegations of protected activity that are only incidental to a cause of action based on unprotected activity. (Martinez v. Metabolife Int'l, Inc. (2003) 113 Cal.App.4th 181, 185.)

EnviroLegal relies exclusively on Code Civ. Proc. section 425.16(e)(2). It does not contend the report was made before any official proceeding, in a public forum, or in connection with an issue of public interest. The analysis therefore turns on whether the December 3, 2025 report was a "written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law." (Code Civ. Proc. § 425.16(e)(2).)

It is undisputed that no action was pending when the report issued. Plaintiffs filed their original Complaint on February 19, 2026, more than two months after the report. (Skinner Decl. ¶ 3.) EnviroLegal must therefore show the report was a prelitigation communication made in anticipation of litigation contemplated in good faith and under serious consideration. (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1251.) A mere possibility of future litigation does not suffice. (Mission Beverage Co. v. Pabst Brewing Co., LLC (2017) 15 Cal.App.5th 686, 702-703.)

A substantial body of authority holds that reports and estimates generated in connection with the handling of an insurance claim, in the regular course of business, are not protected activity even where litigation later ensues. In People ex rel. 20th Century Ins. Co. v. Building Permit Consultants, Inc. (2000) 86 Cal.App.4th 280, the Court of Appeal affirmed denial of an

anti-SLAPP motion directed at claims that the defendant submitted fraudulent repair estimates and damage reports in connection with Northridge Earthquake claims. The court held that while some of the reports were eventually used in official proceedings or litigation, they were not created before or in connection with an issue under consideration or review by an official proceeding, and warned that protecting such reports because they could eventually be used in an official proceeding would effectively immunize fraud so long as the defrauding party was willing to take its cause to court. (Id. at 284-285.) In *People ex rel. Fire Ins. Exchange v. Anapol* (2012) 211 Cal.App.4th 809, the court held that reports and estimates prepared in the regular course of business are not protected, and identified the narrow circumstances in which a prelitigation insurance communication might qualify: where informal negotiations have proven unfruitful and a decision to sue has been made such that the submission is a prerequisite to suit, or where the insured has already been informed the claim will be denied. The court characterized those circumstances as "the exception, rather than the rule," and held that the possibility of litigation in the event of nonperformance is not enough. (Id. at 827-828.) And in *People ex rel. Allstate Ins. Co. v. Rubin* (2021) 66 Cal.App.5th 493, the court rejected application of the statute to allegedly fraudulent medical reports and billing statements prepared in support of insurance claims, holding that such preparation in the routine and usual course of business, which may or may not result in litigation, does not rise to protected prelitigation activity. (Id. at 502.)

The Declaration of Brad Kovar, EnviroLegal's President and CEO and the only percipient declaration submitted, nowhere states that EnviroLegal, or anyone else, contemplated litigation. It states instead, repeatedly, that the engagement, the report, the transmittal email, and the invoice were prepared, received, or maintained in the ordinary course of EnviroLegal's business. (Kovar Decl. ¶¶ 8, 13, 15, 17, 20, 24.) Paragraph 13 states that the report itself "was prepared in the ordinary course of EnviroLegal's consulting work."

Mercury's November 21, 2025 request email is from a claims adjuster, not counsel. It makes no mention of litigation, threatened or contemplated. It reflects an ongoing adjustment: Mercury states that "[a]t this time we have advised them that cleaning only is warranted," and asks, "but based on this report, do you think it would warrant an expanded scope?" (Kovar Decl., Exh. A.) That is a request for technical input into a pending coverage determination, not a communication concerning a proposed proceeding under serious consideration.

Mercury had issued no denial when the report was prepared. The partial denial issued December 29, 2025, two weeks after EnviroLegal transmitted its review. (FAC ¶ 40; Coleman Decl., Exh. A.) Neither of the two Anapol exceptions is present: negotiations had not failed, no decision to sue had been made, and Plaintiffs had not been told their claim would be denied.

The invoice describes four hours of "Document Review" billed at a standard hourly rate of \$350. (Kovar Decl., Exh. D.) EnviroLegal itself relies on this document to show the engagement was routine and not outcome-dependent.

EnviroLegal argues that the involvement of Plaintiffs' counsel and the existence of a competing expert report demonstrate that litigation was reasonably anticipated. *Strawn v. Morris Polich & Purdy, LLP* (2019) 30 Cal.App.5th 1087 rejects materially the same argument. There, the court held that an insured's retention of counsel does not necessarily reflect serious contemplation of litigation as opposed to a desire for assistance in a complicated insurance claim process, and that the contrary rationale would assume that the investigation involved in processing an insurance claim is necessarily conducted in anticipation of litigation. (Id. at 1097-1098.)

EnviroLegal's remaining argument is that it is not the carrier, made no coverage determination, and is sued solely for furnishing a written expert critique. The Court accepts that the challenged claims arise from the report and its transmission; that is the act supplying the elements of each cause of action. (*Park*, supra, 2 Cal.5th at pp. 1062-1063; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009-1010.) But identifying the act is only the first half of the inquiry. That the act was communicative does not make it protected; the communication must also fall within one of the four categories enumerated in section 425.16(e). (Code Civ. Proc., § 425.16(e); *Briggs*, supra, 19 Cal.4th at p. 1117.) EnviroLegal invokes only subdivision (e)(2), and the report does not satisfy it.

Defendant has therefore failed to carry its threshold burden under the first prong of section 425.16 as to any of the challenged causes of action. The gravamen of the third through fifth causes of action is the preparation and delivery of a consulting report in the ordinary course of business during the adjustment of a pending insurance claim. That conduct was not made in connection with an issue under consideration or review by any judicial or other official proceeding.

Because the first prong is not satisfied, the Court need not reach the second prong regarding Plaintiffs' probability of prevailing. (*Durkin v. City and County of San Francisco* (2023) 90 Cal.App.5th 643 ["If the moving party fails to satisfy the first prong, the motion is properly denied without proceeding to the second prong."]; *Robles v. Chalilpoyil* (2010) 181 Cal.App.4th 566, 582.)

The special motion to strike is DENIED.

Demurrer to First Amended Complaint

Defendant EnviroLegal, LLC demurs to the third, fourth, and fifth causes of action of the First Amended Complaint on the ground that each is barred by the litigation privilege and that each fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10(e).)

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Court notes that no declaration has been submitted along with the Demurrer detailing moving party's meet and confer efforts. The parties did not successfully meet and confer. However, the Court exercises its discretion to address the merits of the demurrer.

Request for Judicial Notice

EnviroLegal requests judicial notice of Exhibits A through E to the Kovar Declaration (the Mercury request email, the EnviroLegal report, the transmittal email, the invoice, and the ACC report), and Exhibit F (the First Amended Complaint).

The request is granted.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Litigation Privilege

A demurrer may be sustained on the basis of an absolute privilege only where the bar appears on the face of the pleading or from judicially noticeable matter. (Silberg v. Anderson (1990) 50 Cal.3d 205, 215-216.)

The prelitigation exception of Civil Code section 47(b) requires the same showing that defeated the motion to strike – that the communication related to litigation contemplated in good faith and under serious consideration. (Action Apartment, supra, 41 Cal.4th at 1251.) Nothing on the face of the FAC establishes that anyone seriously considered litigation as of December 3, 2025. The FAC alleges the opposite trajectory. It alleges that Mercury was still adjusting the claim, that no denial had issued, and that Plaintiffs were pursuing benefits under the Policy. (FAC ¶¶ 34-41.)

EnviroLegal's contrary showing rests entirely on the surrounding circumstances reflected in the Kovar exhibits, offered for their truth. That is precisely what judicial notice cannot supply on demurrer, and what EnviroLegal's own request disclaims.

Strawn v. Morris Polich & Purdy is directly on point. (Strawn v. Morris Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087.) The Court of Appeal there reversed an order sustaining a demurrer on litigation privilege grounds in an insurance dispute, holding that the allegations raised a factual question as to whether the insurer was in good faith seriously considering litigation, and that the demurrer should not have been granted on the basis of the privilege. (Id.)

The demurrer is OVERRULED insofar as it is based on Civil Code section 47(b).

Third Cause of Action: Negligent Misrepresentation

Plaintiffs represent that they "will not proceed with their cause of action for negligent misrepresentation."

The demurrer to this cause of action is therefore OVERRULED as MOOT.

Fourth Cause of Action: Intentional Interference with Contract

The elements for the tort of intentional interference with the performance of a contract are: "(1) a valid contract between plaintiff and another party; (2) defendant's knowledge of the contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (Asahi Kasei Pharma Corporation v. Actelion Ltd. (2013) 222 Cal.App.4th 945, 958.)

The FAC pleads each element. It alleges a valid and existing Policy between Plaintiffs and Mercury; EnviroLegal's knowledge of the Policy and of the use to which its report would be put; intentional acts, specifically the preparation of a report containing false and misleading statements with the intent that Mercury use it to deny or reduce payment; Mercury's partial denial; and damages. (FAC ¶¶ 73-78.) That is sufficient at the pleading stage.

EnviroLegal's substantive argument is that the FAC fails to plead independently wrongful conduct apart from the interference itself, citing Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1153. That argument misapprehends the applicable standard. Independently wrongful conduct is an element of intentional interference with prospective economic advantage, and of interference with an at-will contract. It is not an element of a claim for interference with an existing contract that is not terminable at will. (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 55; Ixchel Pharma, LLC v. Biogen, Inc. (2020) 9 Cal.5th 1130, 1141-1148.) The FAC in any event pleads independent wrongfulness expressly, resting it on the negligent misrepresentation alleged in the third cause of action. (FAC ¶ 76.) Plaintiffs have now abandoned that claim, so the pleaded predicate no longer stands. That is immaterial, because independent wrongfulness is not an element of this claim, and EnviroLegal has not argued the Policy was terminable at will.

The demurrer to the fourth cause of action is OVERRULED.

Fifth Cause of Action: Civil Conspiracy

Civil conspiracy is not an independent cause of action. It is a legal doctrine that imposes liability on persons who share with the immediate tortfeasor a common plan or design in the perpetration of an underlying tort, and it applies only where the defendant owes a duty and is legally capable of committing the underlying tort. (Applied Equipment, supra, 7 Cal.4th at 510-511; Doctors' Co. v. Superior Court (1989) 49 Cal.3d 39, 44.)

As currently framed, the fifth cause of action does not identify a viable underlying tort. To the extent it rests on Mercury's breach of the implied covenant, a non-insurer cannot be held liable for conspiring in the insurer's bad faith, because the duty is imposed on the insurer alone. (Doctors' Co., supra, 49 Cal.3d at 44-48.) To the extent it rests on negligent misrepresentation, the predicate incorporated by reference, Plaintiffs have abandoned that claim. To the extent it rests on intentional interference, the conspiracy theory adds nothing, because EnviroLegal is alleged to be the direct actor and Mercury cannot conspire to interfere with its own contract. (Applied Equipment, supra, 7 Cal.4th at 513-514.)

In opposition, Plaintiffs recharacterize the claim as one for conspiracy to defraud, relying on Younan v. Equifax, Inc. (1980) 111 Cal.App.3d 498 and Sprague v. Equifax, Inc. (1985) 166 Cal.App.3d 1012.

Plaintiffs correctly observe that the substance of the allegations controls over the label. (Quelimane, supra, 19 Cal.4th at pp. 38-39.) The difficulty is not the caption but the substance. Paragraphs 79 through 85 do not allege knowledge of falsity, intent to defraud, or Plaintiffs' reliance, and they do not plead the formation and operation of the conspiracy with the specificity required of fraud claims as to each defendant. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Because Plaintiffs have identified a legally cognizable theory that they have not yet pleaded, leave to amend is appropriate. (Blank, supra, 39 Cal.3d at 318.)

The demurrer to the fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Conclusion

Defendant EnviroLegal, LLC's special motion to strike is DENIED.

Defendant's demurrer is OVERRULED as to the third and fourth causes of action, and SUSTAINED WITH LEAVE TO AMEND as to the fifth cause of action.

Plaintiffs shall file and serve a Second Amended Complaint, if any, within 20 days of notice of this ruling.

The Case Management Conference is Continued to December 11, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and

there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.